

End User License Agreement

EntryPoint

1. General. This is an Educational End User License Agreement (hereinafter “EULA”) between Innovative Educational Solutions, Inc, as defined below (“IES”) and you, as defined below (hereinafter “you” or “Educational User”) who is accepting these terms and conditions.

1.1. Acceptance. By clicking to accept (via an “I agree” or similar button), or by creating an account, accepting a seat licensing, logging in, or otherwise using the Licensed Software set forth in Section 2.7 below, you become a party to a legal agreement with IES and consent to be bound by all terms and conditions in this EULA (such agreement under this EULA being hereinafter referred to as the “Agreement”). You further agree that you have had sufficient opportunity to review this EULA, understand its contents, and seek independent legal advice regarding this EULA. If you do not agree with these terms, please do not use the Licensed Software. If you are an Educational User (as defined below), you must be above the legal age of consent in your jurisdiction.

1.2. Rights. Subject to Section 2.2 of this EULA, Educational User may, depending from jurisdiction to jurisdiction, have other rights which may not be excluded or limited. Nothing in this EULA is intended to restrict such rights.

2. DEFINITIONS

2.1 “Educational Institution” shall mean the university, college, K-12 school or similar educational entity with the primary purpose of teaching enrolled students that has executed a Master Services Agreement, an Order Form and by incorporation the Terms and Conditions and Data Processing Agreement incorporated into those documents (collectively referred to in this EULA as the “Agreement”).

2.2. “Educational Use” shall mean the use of Licensed Software for the purposes of learning, teaching, research and development as part of educational instruction. Educational use does not include any commercial, professional, or for-profit purposes.

2.3. “Educational User” means an employee of a recognized Educational Institution with sufficient legal authority to enter into this EULA. An Educational User must be able to provide IES with proof of their educational status an employee of an educational institution upon request. An educational institute must be able to provide IES with proof of accreditation of its educational institute status upon request. Only Educational Users, as well as currently accredited educational institutes are allowed to use the Licensed Software under this EULA.

2.4. “Force Majeure Event” shall have the meaning set forth in the Force Majeure section below.

2.5. "License Term" shall be as defined below in Section 13.2.

2.6. "Licensed Software" shall mean IES's software product which is licensed for use by the Educational User under this EULA. Licensed Software includes, if and to the extent applicable, corresponding online or electronic documentation, associated media and printed materials, including the source code, and example programs. IES may, in the course of its development activities, at its free and absolute discretion and without any obligation to send or publish any notifications to the Educational User or in general, make changes, additions or deletions in the components and functionalities of the Licensed Software, provided that no such changes, additions or deletions will affect the already released version of the Licensed Software, but only upcoming version(s). For Educational Users, "Licensed Software" is limited to

- i. EntryPoint SRM and documentation.

2.7. "Modified Software" shall mean any modifications, edits, or other changes to the Licensed Software. More details are provided below in Section 5.

2.8. "Permitted Software" shall mean third party products that are generally available for public for general office productivity (e.g. word processor, document viewer, spreadsheets etc.)

2.9. "Pre-Release Code" shall have the meaning as set forth in Section 7.

2.10. "Prohibited Combination" shall mean the combination of, or any effort to use, combine, incorporate, link or integrate Licensed Software with: (i) any software created to work with or incorporating EntryPoint, or use Licensed Software for creation of any such software, or (ii) any commercial integration or API not approved in writing by IES.

2.11. "IES" shall mean:

- i. Innovative Educational Solutions Inc., an Indiana corporation with its office at 6850 E County Rd 50, Michigantown, IN 46057, USA.

2.12. "Third-Party Software" shall have the meaning set forth in Section 6 of this EULA.

3. OWNERSHIP

3.1. The Licensed Software is protected by copyright laws and international copyright treaties, as well as other intellectual property laws and treaties. The Licensed Software is licensed, not sold.

3.2. All of IES's Intellectual Property Rights are and shall remain the exclusive property of IES or its licensors respectively. No rights to IES's Intellectual Property Rights are assigned or granted to Educational User under this EULA, except when and to the extent expressly specified herein.

4. LICENSE GRANT

4.1. IES grants to Educational User a non-exclusive, non-transferable, revocable, royalty-free license, valid for the License Term, to use the Licensed Software for the sole purposes as outlined in the Agreement signed between your Educational Institution and IES.

4.2. The licenses granted in this Section are conditional and subject to Educational User's compliance with the following terms:

- i. Educational User shall not transfer, publish, sublicense, disclose, display or otherwise make the Licensed Software available to any third party;
- ii. Educational User shall not cause its Educational Institution to use Licensed Software in any Prohibited Combination, unless Educational User has received advance written permission from IES to do so. Notwithstanding the foregoing, Educational User is entitled to use and combine Licensed Software with any Permitted Software;
- iii. Educational User shall not remove or alter any copyright, trademark or other proprietary rights notice(s) contained in any portion of the Licensed Software;
- iv. Educational User may not use the Licensed Software to create software competing with the Licensed Software;
- v. Educational User shall not use Licensed Software in any manner or for any purpose that infringes, misappropriates or otherwise violates any Intellectual property or right of any third party, or that violates any applicable law;
- vi. Educational User shall not use IES's or any of its suppliers' names, logos, or trademarks without IES's prior written permission;
- vii. Educational User shall not distribute, sublicense or disclose source code of Licensed Software to any third party;
- viii. Educational User shall not attempt to reverse engineer or otherwise modify the source code;
- ix. Educational User shall not attempt or enlist a third party to conduct or attempt to conduct any of the above;
- x. Educational User acknowledges that as an Employee of an Educational Institution that has a legally binding Agreement with IES that violation of this EULA could contribute to a breach of the terms of the Agreement and potential liability for the Educational Institution.

4.4. The above terms are not applicable if and solely to the extent they conflict with any mandatory provisions of any applicable laws.

4.5. Any use of Licensed Software beyond the provisions of this EULA is strictly prohibited. Use of Licensed Software for any professional, commercial, or for-profit purposes requires a commercial agreement with IES.

5. MODIFIED SOFTWARE. Educational User shall not create any bug-fixes, error corrections, patches or modifications to the Licensed Software ("Modified Software"). Any Modified Software created in violation of this Agreement shall be and remain the sole and exclusive property of IES. Creation of Modified Software shall constitute a material breach of this Agreement and may result in immediate termination of granted hereunder to both the Educational User and their Educational Institution. Educational User acknowledges and agrees that any attempt to create or use Modified Software with the Licensed Software is strictly prohibited the License.

6. THIRD PARTY SOFTWARE. The Licensed Software may provide links or access to third party libraries or code (collectively "Third-Party Software") to implement various functions. Third-Party Software does not, however, comprise part of the Licensed Software, but is provided to Educational User complimentary and use thereof is discretionary for the Educational User. Educational User acknowledges that use or distribution of Third-Party Software is in all respects subject to applicable license terms of applicable third-party right holders.

7. PRE-RELEASE CODE

7.1. The Licensed Software may contain pre-release code and functionality, or sample code marked or otherwise stated with appropriate designation such as "Technology Preview", "Alpha", "Beta", "Sample", "Example" etc. ("Pre-Release Code").

7.2. Such Pre-Release Code may be present complimentary for the Educational User, in order to provide experimental support or information for new platforms or preliminary versions of one or more new functionalities or for other similar reasons. The Pre-Release Code may not be at the level of performance and compatibility of a final, generally available, product offering. The Pre-Release Code may not operate correctly, may contain errors and may be substantially modified by IES prior to the first commercial product release, if any. IES is under no obligation to make Pre-Release Code commercially available, or provide any support or updates relating thereto. IES assumes no liability whatsoever regarding any Pre-Release Code; any use thereof is exclusively at Educational User's own risk and expense.

7.3. Unless Licensed Software specifies different license terms for the respective Pre-Release Code, the Educational User is entitled to use such Pre-Release Code pursuant to the license grant and other terms of this EULA.

8. RESTRICTIONS

8.1. Export Control. Educational User acknowledges that the Licensed Software, or portions thereof, may be subject to export control restrictions under the applicable laws of respective countries. Educational User shall fully comply with all applicable export license restrictions and requirements, economic sanctions restrictions, as well as with all laws and regulations relating thereto, and shall procure all necessary governmental authorizations, including without limitation, all necessary licenses, approvals, permissions or consents, where necessary. Educational User hereby declares and warrants that is not a sanctioned individual or entity as defined under European Union and United States sanctions laws and restrictions.

8.2. Restricted Use. The Licensed Software is commercial computer software developed fully at private expense. Further, Educational User acknowledges that any use of the Licensed Software is at Educational User's own risk and that it is Educational User's responsibility to ensure that their use of the Licensed Software complies with applicable laws and regulations. Licensed Software may not be used for any illegal or illicit purpose.

8.3. Suspension. IES reserves the right to suspend and/or block Educational User's access to, and use of, the Licensed Software in the event that IES reasonably believes that Educational User's use of the Licensed Software violates applicable law, this EULA, or threatens the integrity, availability, or security of the Licensed Software or related IES products and services.

9. VERIFICATION OF COMPLIANCE

9.1. IES reserves the right to verify Educational User's compliance with this EULA. This includes, but is not limited to, verifying that Educational User qualifies as a current and continuing Educational User under this EULA. Further, IES may verify that the use of Licensed Software does and continues to qualify as a permitted Educational Use. Verification of compliance may include (at IES's reasonable discretion) access to records, documentation, or, if necessary, on-site verification. Any on-site verification will be subject to at least ten (10) days prior written notice on the part of IES.

10. LIMITED WARRANTY AND WARRANTY DISCLAIMER

10.1. To the extent permitted by applicable law, the Licensed Software is provided "as is" and exclusive of other warranties, whether express, implied, or otherwise. Use of the Licensed Software is at Educational User's own risk.

10.2. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IES ON BEHALF OF ITSELF AND ITS LICENSORS, SUPPLIERS AND AFFILIATES, DISCLAIMS ALL CONDITIONS AND WARRANTIES, EXPRESS OR IMPLIED,

INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT WITH REGARD TO THE LICENSED SOFTWARE. IES DOES NOT WARRANT THAT THE LICENSED SOFTWARE WILL OPERATE WITHOUT DEFECT OR ERROR OR THAT THE OPERATION THEREOF WILL BE UNINTERRUPTED.

11. LIMITATION OF LIABILITY

11.1. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW AND EXCEPT FOR ANY LIABILITY THAT CANNOT BE EXCLUDED OR RESTRICTED BY APPLICABLE LAW, IES DISCLAIMS ANY AND ALL LIABILITY FOR ANY LOST PROFITS, LOSS OF DATA, LOSS OF BUSINESS OR GOODWILL OR ANY OTHER INDIRECT, SPECIAL, CONSEQUENTIAL, INCIDENTAL OR PUNITIVE COST, DAMAGES OR EXPENSE OF ANY KIND, HOWSOEVER ARISING UNDER OR IN CONNECTION WITH THIS EULA.

11.2. EXCEPT WHERE REQUIRED OTHERWISE BY APPLICABLE LAW, IN NO EVENT SHALL IES'S TOTAL AGGREGATE LIABILITY UNDER THIS EULA EXCEED ONE HUNDRED US DOLLARS (\$100) OR THE LOCAL EQUIVALENT THEREOF.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1. The United Nations convention on contracts for the international sale of goods will not apply to this EULA.

12.2. Where this EULA is concluded with IES, Inc., an Indiana corporation, the Parties agree that this Section 12.2 will apply. This EULA will be governed by, and construed in accordance with the laws of the State of Indiana and any controlling United States federal law. Any dispute, controversy or claim arising out of or relating to this contract, including the formation, interpretation, breach or termination thereof, including whether the claims asserted are arbitrable, will be referred to and finally determined by arbitration in accordance with the JAMS International Arbitration Rules. The tribunal will consist of one arbitrator. The place of arbitration will be Marion County in the State of Indiana, USA. The language to be used in the arbitral proceedings will be English. Judgment upon the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof. This Section 12.2 shall not preclude parties from seeking provisional remedies in aid of arbitration from a court of appropriate jurisdiction.

13. TERM AND TERMINATION

13.1. Agreement Term. This EULA commences upon acceptance by the Educational User and continues for as long as a valid license is in place under the Agreement. If the Educational User accepts a new or updated EULA, that EULA shall replace and supersede any prior EULAs in place between the Parties.

13.2. License Term. Educational User's License is granted for as long as the Educational Institution licenses the Software according to the Agreement that the Educational Institution has signed with IES. Should the Educational User cease to be an eligible Educational User during the License Term, the license grant under this EULA expires for that particular Educational User (but not the Educational Institution on the whole) and that individual must immediately cease all use of the Licensed Software under this EULA.

13.3. Termination. Parties may terminate in accordance with the terms outlined in the Agreement between the Educational Institution and IES.

14. MISCELLANEOUS

14.1. Assignment. Educational User shall not be entitled to assign or transfer all or any of its rights, benefits and obligations under this EULA except with the prior written consent of IES. IES shall be entitled to freely assign or transfer any of its rights, benefits or obligations under this EULA.

14.2. Surviving Sections. Any terms and conditions that by their nature or otherwise reasonably should survive termination of this EULA shall so be deemed to survive.

14.3. Agreement. The IES Privacy Policy and IES Terms and Conditions (available at <https://www.ies.com/privacy-policy> and <https://www.ies.com/terms-conditions/> respectively) are incorporated into this EULA. Use of the licenses under this EULA is subject to the linked terms and any updates thereof made available to you via your use of the Licensed Software.

14.4. Subcontractors. IES may utilize subcontractors in the performance of Licensed Software under this EULA, provided that IES remains responsible for compliance with this EULA, as well as ensuring that subcontractors are required to abide by relevant restrictions (e.g., confidentiality) set forth in this EULA.

14.5. Modifications. No modification of this EULA shall be effective unless contained in a writing executed by an authorized representative of each Party. No standard terms and conditions or provisions of any Educational User purchase order or other ordering form that Educational User may use in connection with the acquisition of Licensed Software will modify or affect this EULA, the parties agree that any such terms and conditions are void with no legal effect.

14.6. Force Majeure. Neither Party shall be liable to the other for any delay or non-performance of its obligations hereunder in the event and to the extent that such delay or non-performance is due to an event of act of God, terrorist attack or other similar unforeseeable catastrophic event that prevents either Party for fulfilling its obligations

under this EULA and which such Party cannot avoid or circumvent (“Force Majeure Event”).

14.7. Notices. IES may provide notice to Educational User in writing, including via electronic mail or via Educational User’s IES Account, mail, or personal delivery. Notice shall be deemed properly given and deemed received if: specifically acknowledged by the receiving Party in writing; or when successfully delivered to the recipient by hand, fax, or special courier; on the day information is provided to Educational User’s IES Account; in the case of mail, four (4) days after deposit in the mail; or, in the case of electronic mail, on the day the electronic mail is sent by IES. Each communication and document made or delivered by one Party to the other Party pursuant to this EULA shall be in the English language. For the purposes of the EULA and this Notice provision, the Educational User’s mailing address shall be the mailing address of the Educational Institution which has entered into the Agreement with IES.

14.8. Reservation of Rights. IES reserves the right to make changes to the features, functions, availability, support, capabilities, and characteristics of the Licensed Software. Nothing in this EULA limits any rights that an individual may have under applicable consumer protection laws.

14.9. Feedback. Educational User agrees that, from time to time, IES, may request feedback from Educational User regarding the Licensed Software (“Feedback”). Educational User may choose to provide Feedback and agrees that IES may freely use, copy, disclose, and exploit any Feedback. No Feedback will be considered Educational User Confidential Information unless explicitly agreed otherwise between the parties.

14.10. Severability. If any provision of this EULA shall be adjudged by any court of competent jurisdiction to be unenforceable or invalid, that provision shall be limited or eliminated to the minimum extent necessary so that this EULA shall otherwise remain in full force and effect and enforceable.